



Course Title: Islamic Studies/Ethics

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Week-06&07

Chapter # 05

Introduction to Islamic Jurisprudence (Usul al-Fiqh)

Definition and Meaning

Islamic Jurisprudence, known as *Fiqh*, refers to the human understanding and interpretation of the divine law (*Shari'ah*). While *Shari'ah* is the divine law revealed by Allah in the Qur'an and Sunnah, *Fiqh* is the science of deriving legal rulings from these sources. The term *Usul al-Fiqh* (principles of jurisprudence) refers to the methodology and principles used by scholars to extract rulings.

Sources of Islamic Law

1. Primary Sources

- **Qur'an** – The divine revelation, ultimate authority.
- **Sunnah (Hadith)** – Sayings, actions, and approvals of the Prophet.

2. Secondary Sources

- **Ijma (Consensus)** – Agreement of qualified scholars on a ruling.
- **Qiyas (Analogical Reasoning)** – Extending rulings of established cases to new issues by analogy.

Objectives of Islamic Law (Maqasid al-Shari'ah)

The overarching aim of Shari'ah is to secure benefit and prevent harm.

Classical scholars identified five essential objectives (*daruriyyat*):

1. Protection of Faith (*Din*)
2. Protection of Life (*Nafs*)
3. Protection of Intellect (*'Aql*)
4. Protection of Lineage (*Nasl*)
5. Protection of Property (*Mal*)

Significance of Islamic Jurisprudence in Today's World

Islamic Jurisprudence (*Fiqh* and *Usul al-Fiqh*) holds great relevance in the modern era as it provides a framework for Muslims to live according to divine guidance while addressing contemporary challenges. Its flexibility allows for adaptation through *ijtihad* (independent reasoning) while staying rooted in the Qur'an and Sunnah.

Comprehensive Guidance – Covers every aspect of human life, from worship to social, economic, and political matters.

Ethical Finance – Provides alternatives like Murabaha and Mudarabah instead of interest-based banking.

Medical Ethics – Guides decisions on organ donation, IVF, and life-saving treatments in line with preserving life.

Justice & Rights – Promotes fairness, honesty, and fulfilling contracts in personal and professional life.

Social Adaptability – Recognises cultural practices ('urf) while maintaining Shari'ah essentials, e.g., marriage customs.

Global Relevance – Supports Muslims in minority contexts through fiqh al-aqalliyyat (halal food, prayers, wills, etc.).

The Qur'an

Literal meaning

The word “Qur'an” means “that which is recited; or that which is dictated in memory form.”

Terminological meaning

The Qur'an is the Word and Book of Allah the Almighty revealed on the holy Prophet Muhammad peace be upon him through Angel Jibrael or Wahi in Arabic approximately in 23 years.

The word Qur'an has been entitled by Allah the Almighty. This word has been used approximately 70 times in the Qur'an. No other name of any sacred book has been mentioned in the text of that book.

The authenticity of the Qur'an is based on the proclamation of Holy Prophet Muhammad peace be upon him. He was the only who can bear the burden of revelation. Whoever testifies his Prophet-hood only he believes in the authenticity of the Qur'an.

Insights from Yusuf Estes on the Qur'an's Appeal to Non-Muslims

Yusuf Estes, a prominent Muslim scholar and former Christian missionary priest, embraced Islam after extensive study of its sources. In his well-known work *Why Do Priests and Preachers Accept Islam?*, he outlines the intellectual and spiritual factors that lead many non-Muslims to recognise the Qur'an as a unique and divinely preserved scripture. His observations can be summarized with scholarly elaboration as follows:

Only One Version - Arabic:

There are no different versions of the Qur'an in the Arabic language, only different translations and of course, none of these would be considered to hold the value and authenticity of the original Arabic Recitation. The Qur'an is divided up into 30 equal parts, called “Juz” (parts) in the Arabic language. These are learned by Muslims from their very early beginnings as children.

Memorized by Millions - Entirely:

The important thing to keep in mind about the Qur'an is the memorization and transmission of the actual "Recitation" just as it came to Muhammad, peace be upon him, from the Angel Gabriel and was learned and memorized by his companions and they in turn, passed it down to their followers and continued in this way until we see today, over 10,000,000 (ten million) Muslims who have committed the entire Qur'an to memory. This is not a small feat. After all, how many other generations, in the original language, without a single change in even one sentence?

Each Muslim has Qur'an memorized:

All Muslims have memorized a portion of the Qur'an in the Arabic language, as this is an important part of their daily prayers. Many Muslims have memorized large portions of the Qur'an from one tenth to one half to all of the entire Qur'an, and all in the original Arabic language. It should be noted, there are over one and a half billion (1,500,000,000) Muslims worldwide and only about 10% are Arab, all the rest are learning the Qur'an in Arabic as a second language.

God Speaks in First Person to Mankind in the Qur'an:

The Qur'an contains clear statements from Allah the Almighty and it is Him speaking to all of us in the first person. He tells of us our own creation, the creation of all that is the universe and what has happened to those before us and what is to become of us if we do not take heed of the warnings clearly spelled out in His Revelation. He speaks also to Muhammad, peace be upon him, to show that Muhammad, peace be upon him, is not making this up himself and even chastises Muhammad, peace be upon him, for making human assumptions rather than waiting for revelation in matters (ie.; surah At-Tahreem and surah Abasa).

The Qur'an mentions itself:

The Qur'an refers to itself as "The Qur'an" (The Recitation) and mentions that it is to all mankind and jinn (another creation of Allah, similar to humans in that they could make choices as to whether or not they would obey Allah's Commandments, and they existed before humans).

The Qur'an describes Allah's nature exactly:

The Qur'an is clear on who God is and who He is not. There is no room left for doubt after reading the Qur'an in the Arabic language: Allah is One. He is the only, Creator, Sustainer and Owner of the Universe. He has no partners. He has no relatives; wives, children or offspring. He is like His creation and He does not need it for His existence, while all the time the creation is totally dependent on Him. His attributes are clearly spelled out as the epitome of each and every one. He is for instance, the All-Knowing: the All-Hearing, the All-Seeing the All-Forgiving; the All- Loving: the All-Merciful; the Only One God. There is never a contradiction to this found anywhere in the Qur'an.

The Qur'an challenges readers:

The Qur'an makes the clear challenge, that if you are in doubt about it - then bring a book like it. Also, to bring ten chapters like it and then finally, to bring one single chapter like it. 1400 years - and no one has been able to duplicate its beauty, recitation, miracles and ease of memorization. Another challenge for the unbelievers to consider;

“If this (Quran) were from other than Allah, you would find within it many contradictions.”

And yet, another challenge offered by Allah the Almighty in the Qur'an is for the unbelievers to look around for evidences. Allah says He will show them His signs within themselves and on the farthest horizons.

Scientific Miracles in the Qur'an:

The scientific miracles of the Qur'an could not have been understood at that time, yet today we take for granted the many things included in the revelation of the Qur'an. It is the only book that passes the scientific test of modern age. The Qur'an does not require confirmation from science yet it is a miracle for all the times. This era is known as the era of science. The facts of nature that has been explored by the science have already been mentioned in the Qur'an. Only the Creator of this world could have told these facts 14 centuries ago. Dr. Maurice Bucallie a famous scientist converted to Islam has mentioned this fact in his book. The Qur'an is the only book that speaks in language of science. Some of the miraculous facts have been mentioned as follows:

- The formation of embryo with minute details in the womb of the mother.
- Deep seas partitions; waters that do not mix.
- Clouds and how they make rain and how lightning is caused by ice crystals.
- Formation of the earth's mountains deep underground.
- Orbits of planets and stars and moons and even the mention of space travel (surah 55:33).
- Everything has been created from water.
- The literal meaning of Munir.
- The expanding Universe.
- Big Bang and Big Crunch

Authenticity of the Qur'an and the Bible – Comparative Analysis

Criteria to Verify Authenticity of Any Sacred Book

- **Genuineness** – Was the book given and supervised by the founder of the religion? Is the language original?
- **Authenticity** – Has the text remained free from contradictions, conflicts, and alterations?
- **Integrity** – Has anything been added or removed after the founder's time?

2. Compilation of the Bible

- Admitted by Christian scholars that the Bible is **not purely divine revelation**.
- Luke acted as a historian, arranging material on his own judgment.
- No evidence that it was compiled under divine instruction.

3. Language of the Bible

- Original language of Jesus: **Aramaic**.
- Bible written later in Hebrew, Greek, and Latin – not in Jesus' original language.
- Today no complete Hebrew or Greek manuscripts exist.
- First English Bible: 1525–1611, presented as “original” not as translation.
- Multiple versions exist (e.g., **King James Version**, others).

4. Language of the Qur'an

- Revealed directly in **Arabic**, Prophet Muhammad's own language.
- Still a living, widely spoken language.
- Qur'an always preserved in Arabic alongside translations.
- Written under the Prophet's direct supervision by scribes.

- Recited and verified by the Prophet himself, eliminating errors.
- No versions or variations exist worldwide.

5. Preservation of the Qur'an

- Completed and arranged during Prophet Muhammad's lifetime.
- Revised annually with Angel Jibreel; last Ramadan, revised twice.
- Thousands of companions memorized it (*huffaz*).
- Compilation under Abu Bakr (verified by multiple witnesses).
- Standardization under Uthman – one Qurayshi dialect for unity.
- Oldest manuscripts preserved (e.g., Birmingham Qur'an, Topkapi Museum).
- Carbon dating confirms manuscripts from the Prophet's era.

6. Authenticity of the Bible – Scholarly Views

- **Dr. Graham Scroggie (Moody Bible Institute):** Bible compiled by humans.
- **Kenneth Cragg:** Gospels shaped by editing, condensation, and church influence.
- **Cambridge History of the Bible:** New Testament compiled from writings for other purposes; external evidence is weak or unreliable.
- Estimated **30,000–50,000 errors/variations** in the Bible.
- Presence of contradictions and scientific inaccuracies.

7. Authenticity of the Qur'an

- Only one version of the Qur'an worldwide.
- No differences in wording or alphabet.
- Memorization across centuries ensures accuracy.
- Widely regarded as **the most authentic book on earth**.